

DATED: 12th May 2025

MANAGEMENT AGREEMENT

relating to the property known as

between

1) Suraraj Pradhan

and

2) GOA Property Solutions Ltd.

PARTIES

1. **Suraraj Pradhan. 26A Rhodes Place, Oldbrook, Milton Keynes, Buckinghamshire, England, MK6 2LX.**
2. **GOA Property Solutions Ltd.** Incorporated and registered in England and Wales with company number **13378949. Falcon Avenue, Springfield, Milton Keynes, MK6 3HH.**

BACKGROUND

The Landlord owns the Property and has agreed to allow the Manager to manage the Property in accordance with the terms of this Deed of Agreement.

AGREED TERMS

1. 1. INTERPRETATION

1.1 The definitions in this clause apply in this Agreement.

Account: such bank account communicated in writing from the Landlord to the Manager from time to time.

Agreement: means this Deed of Agreement.

Commencement Date: means 1st May 2025

Fee: £2,750 per calendar month subject to clause 9.

Insurance Policy: the buildings insurance policy in place with the Insurer in respect of the Property.

Insurance Premium: the Insurance Policy premium payable to the Insurer under the terms of the Insurance Policy.

Insured Risks: the risks insured against being loss or damage by fire (including lightning and thunderbolt) storm tempest explosion aircraft (and things dropped therefrom) and aerial devices and impact civil commotion floods burst pipes and all such other risks or perils that may be relevant to the Property.

Insurer: such reputable company or organisation which provides the Insurance Policy.

Letting(s): any letting relating to the Property.

Property: the freehold property known as 39 Upton Grove, Shenley Lodge, Milton Keynes, MK5 7GR.

Services: means the services to be provided by the Manager pursuant to clause 3 of this Agreement.

Term: a term of 2 years from the Commencement Date.

Uninsured Risks: means any loss or damage suffered in relation to the Property which is determined by the Insurer not to be covered by the Insurance Policy.

Working Day: any day that is not a Saturday, Sunday or a public holiday in England.

1.2 Clause and Schedule headings do not affect the interpretation of this Agreement. Except where a contrary intention appears, a reference to a clause or a Schedule is a reference to a clause of, or Schedule to this Agreement.

- 1.3 Unless otherwise specified, a reference to a law is a reference to it as it is in force for the time being taking account of any amendment, extension, application or re-enactment and includes any subordinate legislation for the time being in force made under it.**
- 1.4 A person includes an individual, corporate or unincorporated body. Any reference to the Landlord or to the Manager includes their respective personal representatives and successors in title. Words importing one gender shall be construed as importing any other gender.**
- 1.5 Writing or written includes letters and emails but excludes faxes.**
- 1.6 Any obligation in this Agreement on a person not to do something includes an obligation not to agree or allow that thing to be done.**
- 1.7 Words importing the singular shall be construed as importing the plural and vice versa. Where any party comprises more than one person the obligations and liabilities of that party under this Agreement shall be the joint and several obligations and liabilities of those persons.**

2. 2. APPOINTMENT

The Landlord appoints the Manager to manage the Property and the Manager accepts that appointment, in each case in accordance with the terms of this Agreement with effect from the Commencement Date to the expiry of the Term. The Landlord hereby permits the Manager to let the Property (in whole) in accordance with the terms of this Agreement.

3. THE MANAGER'S DUTIES & OBLIGATIONS

3.1 From the Commencement Date until the expiry of the Term, the Manager shall:

- (a) pay:**
 - (i) the Fee to the Landlord in full cleared funds to the Account.**
 - (ii) all costs arising from Services carried out in respect of the Property.**
 - (iii) council tax (other than any taxes payable by the Landlord).**
 - (iv) all charges for electricity, gas, water, TV licence, broadband and other services consumed or used at the Property (including meter rents); and**
 - (v) all costs expenses and demands arising from an approved Letting including (but not limited to) the costs of complying with all statutes and laws in relation to the Letting and obtaining any court order for possession of the Property.**
- (b) subject to clause 3.2 and clause 7, carry out decoration and repairs required at the Property and make good any damage caused by the tenants, save that the Manager shall not be required to put the Property in any better state of repair or condition than it is in at the date of this Agreement;**
- (c) keep the Landlord informed of relevant matters affecting the Property which a reasonable property owner would consider relevant.**
- (d) the Manager shall be responsible for the regular maintenance of the garden and outdoor areas.**
- (e) subject to clause 7, the Manager shall be responsible for the regular service and maintenance of the central heating, plumbing and electrical systems, and any gas appliances within the Property at the cost of the landlord.**
- (f) be responsible for the regular service and maintenance of the boiler, with the exception of maintenance following a fault provided it is covered under the warranty.**
- (g) visit the Property at least once a quarter to inspect the general condition and take appropriate action to ensure that tenants are observing the terms of their Lettings and enforce compliance, as necessary, at the Manager's sole cost.**

- (h) keep accurate records of the terms of all Lettings and occupation of the Property and other legal issues affecting them and provide copies of such records to the Landlord within 5 working days of receiving a written request from the Landlord.**
- (i) answer management enquiries from tenants, their legal advisers or other professional advisers as reasonably required.**
- (j) take all reasonable steps necessary in securing and safeguarding the Property and complying with insurers' requirements as notified to the Manager by the Landlord.**
- (k) seek the Landlord's permission before any repairs are made that are the Landlord's responsibility unless the repairs are of an urgent nature and require immediate attention whereby the Manager will inform the Landlord as soon as practicable but within 24 hours of such repair;**
- (l) collect all fees and rent relating to the Property.**
- (m) comply with all laws and regulations in relation to the Property and obtain gas and safety certificates per annum during the Term.**
- (n) keep in place adequate insurance cover for the fixtures, fittings, and contents of the Property and pay the insurance premiums and observe the insurance policies in relation to such insurance.**
- (o) save for those matters which are the responsibility of the Landlord pursuant to clause 7 and subject to prior receipt from the Landlord of the relevant insurance proceeds, expend such proceeds (but no more) in making good the damage or destruction that occurred due to an Insured Risk.**
- (p) carry out such refurbishment works to the Property to ensure the Property can be lawfully let to third parties and provide such additional furniture as is required for the same.**
- (q) arrange for a bimonthly cleaning service at the Property.**
- (r) Cover small maintenance costs upto £150**

- 3.2 The Manager shall not be liable for (and the Landlord shall be responsible and liable for) those obligations listed at clause 7.**
- 3.3 The Manager will not be liable for any Uninsured Risk and the Landlord shall indemnify and hold harmless the Manager from the same.**
- 3.4 Not with standing clause 3.1(a) and clause 9, if the Property is damaged or destroyed so as to make the Property unfit for occupation and use, then, unless the Insurance Policy has been vitiated in whole or in part in consequence of any act or omission of the Managers, or their respective workers, contractors or agents with the actual or implied authority of the Managers, payment of the Fee, or a fair proportion of it according to the nature and extent of the damage, shall be suspended from the date of damage until the Property has been reinstated so as to make the Property fit for occupation and use.**

4. 4. PERFORMANCE AND DELEGATION

- 4.1 The Manager may delegate the performance of the Services to a reputable and properly qualified third party acting under the direction of the Manager and the Manager shall bear all costs incurred through their delegation of any of the Services.**
- 4.2 The Manager when carrying out the Services will at all times act in good faith with the Landlord.**

5. 5. POWER OF ATTORNEY

- 5.1 The Landlord appoints the Manager to be their Attorney with authority to do all such acts and things specified in this Agreement and to execute all documents mentioned below for the Landlord in their name and to act, exercise and execute on the Landlord's behalf the rights, powers and obligations granted or covenanted by the Landlord to the Manager in this clause 5 and declares that the Manager may only use the power conferred on them for the purposes referred to in this clause.**
- 5.2 The Power of Attorney granted by this clause 5 is for the purpose of section 25 of the Trustee Act 1925.and of every other power granting the Manager authority to execute or exercise on the Landlord's behalf all of the trusts powers and discretions vested in the Manager as trustee of the Property under this Agreement.**
- 5.3 For the duration of the Term, the Manager has authority in the Landlord's name and on the Landlord's behalf, but at the Manager's own cost, and on such terms and conditions as seem to them expedient, to:**
- (a) grant and accept surrenders of Lettings for any part of the Property to whomever they see fit provided such tenancy is an assured shorthold tenancy.**
 - (b) demand, collect, receive and take all necessary steps to recover all rents and other sums of money owing to the Landlord in relation to any Letting**
 - (c) evict a tenant or tenants giving proper notice.**
 - (d) give and accept receipts for rent.**
 - (e) enter the Property and permit others to enter it in order to inspect and survey the Property and view its condition and state of repair.**
 - (f) take action to clean, repair, decorate, maintain, renew, restore and improve the Property, it's glass and windows, its contents and all services, paths and**

roads leading to and from it provided that the Manager shall not carry out any works which require planning permission, listed building consent, conservation area consent or building regulations approval without the Landlord's prior written approval;

- (g) take action to abate any nuisance.
- (h) warn off, prohibit and proceed any trespassers.
- (i) enforce any covenant, condition and stipulation in any agreement relating to a Letting granted prior to the date hereof.
- (j) exercise any right of re-entry or re-possession.
- (k) give and receive notices for any lawful purpose relating to the Property.
- (l) change accounts with suppliers of services to the Property from the Landlord's name to the Manager's name and contract in the Manager's name to have other services supplied to the Property.
- (m) cut, trim and prune any trees, shrubs, plants and hedges provided that the Manager shall comply at all times with all bylaws and laws in relation to plants and trees at the Property and indemnify the Landlord for any breach;
- (n) maintain the boundaries of the Property.
- (o) be responsible for the regular service and maintenance of the central heating, plumbing and electrical systems and any gas appliances within the Property.
- (p) ensure that there is gas safety certificate in relation to the Property on an annual basis.
- (q) make any payment which is reasonably necessary or incidental to the performance of their functions under this Power of Attorney; and
- (r) do all other things incidental to the above Power of Attorney or which they reasonably consider necessary or expedient in relation to the Property as fully and effectually as the Landlord could do themselves;

provided that the Manager must at all times comply with all laws and statutes in relation to the Property.

5.4 Pursuant to this clause 5, the Manager may:

- (a) bring as the Landlord's attorney and on the Landlord's behalf or defend any proceedings in respect of or affecting the Property or this Agreement.
- (b) settle as the Landlord's attorney and compromise or submit to mediation arbitration or adjudication any claims or disputes between the Landlord and any other person or persons in relation to the Property.

6. 6. LIABILITY

6.1 Nothing in this clause 6 shall limit or exclude the Manager's liability for:

- (a) death or personal injury caused by their negligence, or the negligence of their employees, agents or subcontractors.
 - (b) fraud or fraudulent misrepresentation; or
 - (c) breach of the terms implied by section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession).
- (b) Types of loss and specific losses not excluded:

7. 7. LANDLORD'S DUTIES AND OBLIGATIONS

7.1 During the continuance of this Agreement the Landlord shall:

- (a) pay any mortgagee or charge which is registered on the Property on the due dates and comply in full with the terms of the mortgage and/or charge;
- (b) provide all documents and information which the Manager shall reasonably require in relation to the Property and/or the Mortgage as soon as reasonably possible;
- (c) maintain and undertake works where required to the structure, glass and windows, load-bearing walls, roof, foundations or exterior of the Property;
- (d) when required, arrange for the replacement of the boiler, at its own cost.

- (e) where works become necessary which are the Landlord's obligation such works must be attended to within 24 hours if an emergency or within 48 hours if of a non-urgent nature of notification by the Manager PROVIDED THAT in the event that the Manager is repeatedly unable to contact the Landlord or the works notified pursuant to this clause 7.1(f) are not carried out within 48 hours of the notification by the Manager to the Landlord the Manager shall have the right at its sole discretion to carry out such works. The costs reasonably and properly incurred by the Manager in carrying out any works pursuant to this clause (and any professional fees and any VAT in respect of those costs) shall be a debt due from the Landlord to the Manager and payable on demand.
- (h) pay the Insurance Premium for the Insured Policy to cover Insured Risks and observe the terms of such insurance policies.;
- (i) at the direction of the Manager, provide such assistance as is reasonably and properly required to allow the Manager to comply with their obligations pursuant to clause 3 and no liability shall attach to the Manager by reason of their having acted or omitting to act where such action or omission resulted directly or indirectly from any failure or delay by the Landlord in providing such information and assistance;
- (j) immediately forward to the Manager any monies received by the Landlord direct from residents/occupiers/tenants of the Property which relates to the period after the Commencement Date.
- (k) comply with all laws and regulations in relation to the Property.
- (l) on request from the Manager, provide such confirmation as is reasonably required to confirm that any mortgage payments have been maintained by the Landlord; and
- (m) provide good working furniture, furnishings and white goods for the Property save that the Landlord does not have an obligation to replace furniture, furnishings and white goods for reasons of damage resulting from any act or omission by the Manager or the tenants during the Term.

7.2 The Landlord will be responsible for the cost of replacing any white goods should it become Faulty during the Term. It will be deemed that all furniture and white goods supplied by the Landlord prior to the commencement of

this Agreement will be subject to hard wear and tear during the Term and will be of no value at the end of the Term.

- 7.3 Where required, the Landlord will give the Manager or their agent permission to refit new locks on each door throughout the Property and the Manager will supply the Landlord with a set of keys for the front and rear door within 24 hours of the locks being changed.**
- 7.4 Subject to clause 8.2, the Landlord agrees not to sell or market the Property for sale or rent during the Term of this Agreement unless notice has been served by the Landlord in accordance with clause 10.4 and complies with the conditions of Clause 11.5.**
- 7.5 The Landlord will indemnify and hold harmless the Manager for any and all costs arising out of the failure by the Landlord to comply with this clause 7.**

8. 8. POWERS RETAINED BY THE LANDLORD

- 8.1 The Landlord may inspect the Property at any time providing they inform the Manager or their agent in writing and give no less than 24 hours' notice.**
- 8.2 The Landlord will be allowed access to the Property during the last 3 months of the Term, to conduct viewings for re-let or sale of the Property. The Landlord will give a minimum of 24 hours' written notice to the Manager or the Manager's agent for each such visit.**
- 8.3 The Landlord may appoint any professional advisers or any other advisers as the Landlord thinks fit.**

9. 9. FEES AND PAYMENT

- 9.1 In consideration of entering into this Agreement, the Manager will pay to the Landlord or his authorised agent, the Fee per calendar month. The Fee will be paid monthly on the last day of each month. Where the Fee is due in respect of part of a month on commencement, termination or expiry of this Agreement, such Fee shall be a pro-rata portion of the monthly Fee as relevant.**
- 9.2 The Fee shall be payable by the Manager to the Landlord whether the Property is occupied or not.**
- 9.3 In consideration for carrying out their duties under this Agreement and paying the agreed Fee to the Landlord, the Manager shall be entitled to retain any and all income arising out of the Property throughout the Term.**

10. 10. TERMINATION

- 10.1 This Agreement may be terminated immediately by the Manager giving notice in writing to the Landlord if at any time the Landlord:**
- (a) shall, in respect of an individual, become bankrupt or unable to pay their debts or have no reasonable prospect of being able to pay their debts within the meaning of section 267 and 268 of the Insolvency Act 1986, or in respect of a company, goes into liquidation (except for a voluntary liquidation for the purpose of reconstruction or amalgamation upon terms previously approved in writing by the Manager). or**
 - (b) commits a serious breach of the provisions of this Agreement and/or has not remedied a breach which is capable of remedy within thirty days after the service of notice requiring it to be remedied. or**
 - (c) fails to pay any or any mortgage payments as required under the terms of any mortgage and clause 7.1.**

(d) fails to pay the Insurance Premium in accordance with clause 7.1(g).

This Agreement may be terminated immediately by the Landlord in writing to the Manager if at any time the Manager:

(a) shall, in respect of an individual, become bankrupt or unable to pay their debts or have no reasonable prospect of being able to pay their debts within the meaning of section 267 and 268 of the Insolvency Act 1986, or in respect of a company, goes into liquidation (except for a voluntary liquidation for the purpose of reconstruction or amalgamation upon terms previously approved in writing by the Landlord). or

(b) commits a serious breach of the provisions of this Agreement and/or has not remedied a breach which is capable of remedy within thirty days after the service of notice requiring it to be remedied.

10.3 If the appointment of the Manager is terminated, the Manager will as soon as possible:

(a) hand over to the Landlord or as it shall direct all records and other assets in the possession or under the control of the Manager belonging to the Landlord and/or relating to the Property.

(b) take all proper steps to facilitate the handover of the provision of the Services to the Landlord or any third party nominated by the Landlord. and

(c) hand over all keys to the Property (including any which have been provided to any third parties).

10.4 The Manager/Landlord may terminate this Agreement, giving not less than 3 months prior written notice to the other party pursuant to clause 11.5

Following termination by the Landlord under clause 10, the Landlord shall within 15 Working Days reimburse the Manager for any and all costs and expenses incurred by the Manager in relation to the refurbishment of the Property by the Manager and the purchase and installation of white goods at the

Property by the Manager, as evidenced by the Manager to the Landlord.

11. GENERAL

- 11.1 The parties to this Agreement are not in partnership with each other.**
- 11.2 This Agreement is for the benefit of the parties to it and is not intended to benefit or be enforceable by anyone else.**
- 11.3 This Agreement (including annexes and any documents referred to in it) constitutes the whole and entire agreement between the parties and no change to it will be effective unless the change is recorded in writing and that record is signed by on or behalf of each party.**
- 11.4 Neither party may assign or part within any way the benefit or burden of this Agreement without the consent in writing of the other party, save that the Manager may appoint a third-party agent to carry out the Services under this Agreement.**
- 11.5 A notice given to a party under or in connection with this Agreement (including the Break Notice and the Reply to Break Notice) shall be in writing and shall be delivered by hand or sent by pre-paid first-class post, recorded delivery or special delivery to the address and for the attention of the relevant party as follows:**
to the Landlord

or to the Landlord's Conveyancers or to such other address, or for the attention of such other person, as was last notified in writing by the Landlord to the Manager.

- 11.6 Any variation of this Agreement shall be in writing and signed by or on behalf of both parties.**
- 11.7 If any provision of this Agreement (or part provision) is found by any court or administrative body of competent jurisdiction to be invalid, unenforceable or illegal, the other provisions shall remain in force. If any invalid, unenforceable or illegal provision would be valid, enforceable or legal if some part of it were deleted, the provision shall apply with whatever modification is necessary to give effect to the intention of the parties.**
- 11.8 No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.**
- 11.9 Each party shall bear their own legal costs in relation to the preparation of this Agreement.**
- 11.10 This Agreement may be executed in any number of counterparts and by the parties on separate counterparts, each of which, when so executed and delivered, shall be an original, but all the counterparts shall together be deemed to constitute one and the same agreement.**
- 11.11 This Agreement shall be governed by and constructed in accordance with English Law and the parties submit to the jurisdiction of the English Courts.**

IN WITNESS whereof this Deed of Agreement has been duly executed by the Parties hereto
as a Deed the day and year first before written

Signed as a Deed by Suraraj Pradhan For and On Behalf of Suraraj Pradhan	<i>Director/Owner</i> 
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Witness signature: L.P

Witness name: Lopamudra Pradhan

Witness address: 26A Rhodes Place, Oldbrok

..... Milton Keynes, MK6 2LX

Witness Occupation: Self Employed

Signed as a Deed by Glenn Amofa For and On Behalf of GOA Property Solutions Ltd.	<i>Director</i> 
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Witness signature: G.A.

Witness name: Gabriella Amofa

Witness address: 42 Gainsborough Close, Grange
farm, MK8 0NA

Witness Occupation: Self Employed